

**SUBSTITUTE FOR
HOUSE BILL NO. 4765**

A bill to amend 1954 PA 116, entitled
"Michigan election law,"
by amending sections 493a, 493b, 495, 509o, 509q, 509r, 509gg, and
509ii (MCL 168.493a, 168.493b, 168.495, 168.509o, 168.509q,
168.509r, 168.509gg, and 168.509ii), section 493a as amended and
section 493b as added by 2023 PA 268, sections 495, 509o, 509q,
509r, and 509gg as amended by 2023 PA 258, and section 509ii as
amended by 2023 PA 257, and by adding sections 15a and 496c.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 **Sec. 15a. "Federal-only voter" means a voter registration**
2 **applicant whose United States citizenship has not been verified,**
3 **who is not a registered elector under this act, and who is not**
4 **entitled to vote in any election other than an election for federal**



1 **offices.**

2 Sec. 493a. (1) Subject to this section, the secretary of state
3 shall automatically register to vote each individual who meets the
4 qualifications of an elector under section 492, **who provides or has**
5 **provided documentation demonstrating United States citizenship,** and
6 who submits an application for an operator's or chauffeur's license
7 issued under the Michigan vehicle code, 1949 PA 300, MCL 257.1 to
8 257.923, an official state personal identification card issued
9 under 1972 PA 222, MCL 28.291 to 28.300, or an enhanced driver
10 license or enhanced official state personal identification card
11 issued under the enhanced driver license and enhanced official
12 state personal identification card act, 2008 PA 23, MCL 28.301 to
13 28.308. In addition, subject to this section, the secretary of
14 state shall automatically register to vote each individual who
15 meets the qualifications of an elector under section 492, **who**
16 **provides or has provided documentation demonstrating United States**
17 **citizenship,** and who submits a change of address application for an
18 operator's or chauffeur's license issued under the Michigan vehicle
19 code, 1949 PA 300, MCL 257.1 to 257.923, an official state personal
20 identification card issued under 1972 PA 222, MCL 28.291 to 28.300,
21 or an enhanced driver license or enhanced official state personal
22 identification card issued under the enhanced driver license and
23 enhanced official state personal identification card act, 2008 PA
24 23, MCL 28.301 to 28.308.

25 (2) Subject to this subsection, for each individual who
26 submits an application under subsection (1) or who is issued a
27 graduated licensing status under section 310e of the Michigan
28 vehicle code, 1949 PA 300, MCL 257.310e, who provides or has
29 provided documentation demonstrating United States citizenship, and



1 who is of sufficient age to register to vote, the secretary of
2 state shall, if the individual is not already registered to vote in
3 this state, add the information required under section 509q(1)(a),
4 (b), and (g) to the qualified voter file for that individual and
5 electronically forward the individual's information to the clerk of
6 the city or township in which the individual resides to have the
7 clerk register that individual to vote. For an individual
8 registered to vote under this subsection, the qualified voter file
9 must include an indication that the individual was registered to
10 vote under this section. Subject to this subsection, the secretary
11 of state shall send to the individual's residence address, by
12 nonforwardable mail, a notice that the individual has been
13 registered to vote and a postage prepaid and preaddressed return
14 form by which the individual may decline the voter registration.
15 The secretary of state shall prescribe the form of the notice
16 described in this subsection. In addition, the secretary of state
17 shall develop procedures for processing a voter registration under
18 this subsection for an individual who has previously declined voter
19 registration under subsection (4).

20 (3) The notice mailed to an individual under subsection (2)
21 must include all of the following:

22 (a) An explanation of the eligibility requirements to register
23 to vote, and a statement that if the individual is not eligible to
24 vote, the individual must decline the voter registration by using
25 the postage prepaid and preaddressed return form.

26 (b) A statement that an individual may decline the voter
27 registration. The statement must also indicate that if the
28 individual declines the voter registration, the fact that the
29 individual declined the voter registration remains confidential and



1 can be used only for purposes of voter registration statistics. The
2 statement must also indicate that if the individual remains
3 registered to vote, the office at which the individual was
4 registered to vote remains confidential and can be used only for
5 voter registration purposes.

6 (c) Information on how a registered elector may cast an absent
7 voter ballot.

8 (4) If an individual returns a notice mailed under subsection
9 (2) and declines the voter registration, that individual is
10 considered to never have been registered to vote and any
11 information added to the qualified voter file for that individual
12 must be removed. However, if an individual has voted in an election
13 and then returns a notice mailed under subsection (2) that declines
14 the voter registration, the secretary of state's office shall
15 contact that individual to determine whether the individual wishes
16 to decline the voter registration or remain registered to vote.

17 (5) If a notice mailed under subsection (2) is returned to the
18 secretary of state by the post office as undeliverable, the
19 qualified voter file must generate a notification to the clerk of
20 the city or township in which that individual resides to have the
21 clerk mail the individual a notice required under section 509aa(3).
22 If an individual returns a notice mailed under subsection (2)
23 without selecting the option to decline the voter registration, the
24 individual remains registered to vote.

25 (6) The secretary of state shall not provide an opportunity to
26 register to vote or automatically register to vote any individual
27 who, when submitting an application under subsection (1), provides
28 documentation demonstrating that the individual is not a United
29 States citizen. Subject to this subsection, for any other



1 individual who submits an application under subsection (1) who has
2 not provided documentation demonstrating United States citizenship,
3 but who is of sufficient age to register to vote, the secretary of
4 state shall offer to register to vote that individual if the
5 individual indicates on the individual's operator's or chauffeur's
6 license application, official state personal identification card
7 application, or change of address application that the individual
8 is a citizen of the United States **and if that individual provides**
9 **documentation demonstrating United States citizenship.** The
10 secretary of state shall add the information required under section
11 509q(1)(a), (b), and (g) to the qualified voter file for each
12 elector registered under this subsection and shall electronically
13 forward the name of each elector registered under this subsection
14 to the clerk of the city or township in which each elector resides
15 to have the clerk register that individual to vote. For an
16 individual registered under this subsection, the qualified voter
17 file must include an indication that the individual was registered
18 to vote under this section. For purposes of this subsection only,
19 the secretary of state shall not register to vote an individual
20 under this subsection who indicates on the individual's operator's
21 or chauffeur's license application, official state personal
22 identification card application, or change of address application
23 that the individual declines to use the application as a voter
24 registration application. The secretary of state shall not transmit
25 any information to the qualified voter file regarding any
26 individual who declines under this subsection to use an application
27 described in this section as a voter registration application.

28 (7) The secretary of state shall use the procedures in
29 subsections (2) to (6) to preregister any individual who meets the



1 qualifications to preregister to vote under section 496a and who
2 submits an application under subsection (1). The procedures in
3 subsections (2) to (5) must be used for each individual who submits
4 an application under subsection (1), or who is issued a graduated
5 licensing status under section 310e of the Michigan vehicle code,
6 1949 PA 300, MCL 257.310e, who provides or has provided
7 documentation demonstrating United States citizenship, and who is
8 of sufficient age to preregister to vote. The notice and procedures
9 required in subsections (2) to (5) must be modified to reflect that
10 the individual has been preregistered to vote, not registered to
11 vote. The procedures in subsection (6) must be used for each
12 individual who submits an application under subsection (1) and who
13 has not provided documentation demonstrating United States
14 citizenship, but is of sufficient age to preregister to vote,
15 except that the secretary of state shall not provide an opportunity
16 to preregister to vote or automatically preregister to vote any
17 individual who, at the time of submitting an application under
18 subsection (1), provides documentation demonstrating that the
19 individual is not a United States citizen.

20 (8) An individual who is not eligible to vote and who, without
21 intending to register to vote, becomes registered to vote through
22 human or mechanical error is not considered to have knowingly
23 intended to register to vote in violation of section 519.

24 (9) If an individual who is not eligible to vote becomes
25 registered to vote under subsection (2) or section 493b and votes
26 or attempts to vote in an election held after the effective date of
27 the individual's voter registration, that individual is presumed to
28 have a defense for a violation under section 932a(c). This
29 subsection does not apply to an individual who knowingly and



1 willfully makes a false statement to effectuate voter registration
2 or who intentionally takes voluntary action to register to vote or
3 vote knowing that the individual is not entitled to vote.

4 (10) Nothing in this section shall be construed to amend the
5 substantive qualifications for voter registration in this state. ~~r~~
6 ~~or to require documentary proof of United States citizenship for~~
7 ~~voter registration.~~

8 (11) The secretary of state shall publicly release data
9 reports, as described in this subsection, on a monthly basis. The
10 data reports must not include any personally identifying
11 information, must be subcategorized by sex and age of the
12 individuals included, and must include all of the following
13 information:

14 (a) The number of individuals registered to vote or
15 preregistered to vote under the procedures in subsections (2) to
16 (5).

17 (b) The number of individuals who declined voter registration
18 or voter preregistration under the procedures in subsections (2) to
19 (5).

20 (c) The number of individuals registered to vote or
21 preregistered to vote under the procedures in subsection (6).

22 (d) The number of individuals who declined voter registration
23 or voter preregistration under the procedures in subsection (6).

24 (e) The number of individuals whose voter registration or
25 voter preregistration was updated pursuant to the requirement under
26 sections 509o and 509r that the secretary of state use the
27 residence address provided on a driver license or state personal
28 identification card application as the applicant's residence
29 address in the qualified voter file.



1 Sec. 493b. (1) If the secretary of state verifies that a state
2 agency in the regular course of business collects sufficient
3 information, including through documents or database verification,
4 to confirm the eligibility for voter registration or the updating
5 of information for an existing voter registration, the secretary of
6 state may designate that state agency as an automatic voter
7 registration agency. Once a state agency is designated as an
8 automatic voter registration agency, that state agency must not be
9 removed as an automatic voter registration agency unless it is
10 shown that the state agency no longer collects sufficient
11 information to confirm the eligibility for voter registration or
12 the updating of information for an existing voter registration.

13 (2) If a state agency is designated as an automatic voter
14 registration agency under subsection (1), that state agency and the
15 secretary of state shall jointly establish a procedure and schedule
16 for automatically and electronically transmitting voter
17 registration information from the state agency to the secretary of
18 state for those individuals who are eligible to register to vote or
19 preregister to vote, or to update information in the qualified
20 voter file for those individuals who are already registered to vote
21 or preregistered to vote. Subject to any instructions issued and
22 determined necessary by the secretary of state to conform with a
23 designated state agency transaction, each designated state agency
24 under subsection (1), the secretary of state, and the clerk of each
25 city and township must comply with the procedures under section
26 493a for automatically registering and preregistering individuals
27 to vote.

28 (3) If information is received under subsection (2) for an
29 individual who is already registered to vote or preregistered to



1 vote, the secretary of state shall use the most recent information
2 for the residence address or name of the individual received from
3 the state agency to update the individual's information in the
4 qualified voter file. The secretary of state shall send to the
5 individual's new residence address, by forwardable mail, notice of
6 the change and a postage prepaid and preaddressed return form by
7 which the individual may verify or correct the information. If the
8 individual returns the notice and indicates that the change to the
9 individual's record was in error, the secretary of state must
10 immediately revert the individual's updated information in the
11 qualified voter file to the information as it existed before the
12 update.

13 (4) Subject to compliance with all applicable federal laws and
14 regulations, as part of an application for Medicaid coverage to the
15 department of health and human services, the department of health
16 and human services shall automatically and electronically transmit
17 the information required under section 509q(1)(a), either the
18 information required under section 509q(1)(b) or the last 4 digits
19 of the individual's Social Security number, and the individual's
20 digitized signature, if available, to the secretary of state for
21 each individual who is of sufficient age to register to vote or
22 preregister to vote and who is verified as a United States citizen.
23 Subject to any instructions issued and determined necessary by the
24 secretary of state to conform with the structure of a department of
25 health and human services application, in processing the
26 information received from the department of health and human
27 services under this subsection, the secretary of state and each
28 city or township clerk shall comply with the requirements
29 established under section 493a(2) to (5) and (7) for automatically



1 registering and preregistering individuals to vote, and the
2 requirements established under subsection (3) for updating
3 information for individuals who are already registered to vote or
4 preregistered to vote.

5 (5) Subject to compliance with all applicable federal laws and
6 regulations, an Indian nation or tribe located in this state may,
7 at its discretion, submit a request to the secretary of state for
8 approval to allow the governing body of the Indian nation or tribe,
9 or an election board, election official, or other designated
10 representative of the Indian nation or tribe, to electronically
11 submit the information required under section 509q(1)(a), either
12 the information required under section 509q(1)(b) or the last 4
13 digits of the individual's Social Security number, and the
14 individual's digitized signature, if available, for any tribal
15 member to the secretary of state for the purpose of registering and
16 preregistering tribal members to vote or for updating the
17 registration or preregistration information of tribal members. If
18 an Indian nation or tribe submits a request under this subsection
19 and the Indian nation's or tribe's governing body, election board,
20 election official, or other designated representative collects
21 sufficient information, including through documents or database
22 verification, to confirm the eligibility for registration or for
23 updating the information for an existing voter registration, the
24 secretary of state shall enter into a memorandum of understanding
25 with the Indian nation or tribe regarding transmission and
26 processing of information for purposes of voter registration.
27 Subject to any instructions issued and determined necessary by the
28 secretary of state to conform with Indian nation or tribal
29 procedures, in processing information received under this



1 subsection, the secretary of state and each city or township clerk
2 shall comply with the requirements established under section
3 493a(2) to (5) and (7) for automatically registering and
4 preregistering individuals to vote, and the requirements
5 established under subsection (3) for updating information for
6 individuals who are already registered to vote or preregistered to
7 vote.

8 (6) The secretary of state and the department of corrections
9 shall coordinate to ensure that eligible individuals are
10 automatically registered to vote, with the opportunity to decline
11 the voter registration, on release from incarceration imposed as a
12 sentence for a crime. Subject to this subsection, for individuals
13 scheduled to be released on parole, or discharged on completion of
14 the individual's maximum sentence, and who will be issued an
15 operator's or chauffeur's license under the Michigan vehicle code,
16 1949 PA 300, MCL 257.1 to 257.923, an official state personal
17 identification card under 1972 PA 222, MCL 28.291 to 28.300, or an
18 enhanced driver license or enhanced official state personal
19 identification card under the enhanced driver license and enhanced
20 official state personal identification card act, 2008 PA 23, MCL
21 28.301 to 28.308, the secretary of state and the department of
22 corrections shall use the procedures under section 493a(2) to (7)
23 to comply with this subsection. However, an individual must not be
24 registered to vote until the individual's release on parole or
25 discharge on completion of the individual's maximum sentence. The
26 procedures under section 493a(2) to (5) must be used for each
27 individual who submits an application for an operator's or
28 chauffeur's license under the Michigan vehicle code, 1949 PA 300,
29 MCL 257.1 to 257.923, an official state personal identification



1 card under 1972 PA 222, MCL 28.291 to 28.300, or an enhanced driver
2 license or enhanced official state personal identification card
3 under the enhanced driver license and enhanced official state
4 personal identification card act, 2008 PA 23, MCL 28.301 to 28.308,
5 who provides or has provided documentation demonstrating United
6 States citizenship, and who is of sufficient age to register to
7 vote. The notice and procedures required under section 493a(2) to
8 (5) must be modified to reflect that the individual is not
9 registered to vote until released on parole or discharged on
10 completion of the individual's maximum sentence. Subject to this
11 subsection, the procedures under section 493a(6) must be used for
12 each individual who submits an application for an operator's or
13 chauffeur's license under the Michigan vehicle code, 1949 PA 300,
14 MCL 257.1 to 257.923, or an official state personal identification
15 card under 1972 PA 222, MCL 28.291 to 28.300, ~~and who has not~~
16 provided documentation demonstrating United States citizenship, ~~but~~
17 **and who** is of sufficient age to register to vote. However, the
18 secretary of state shall not provide an opportunity to register to
19 vote or automatically register to vote any individual who, at the
20 time of submitting an application for an operator's or chauffeur's
21 license under the Michigan vehicle code, 1949 PA 300, MCL 257.1 to
22 257.923, or an official state personal identification card under
23 1972 PA 222, MCL 28.291 to 28.300, provides documentation
24 demonstrating that the individual is not a United States citizen.
25 The secretary of state and the department of corrections shall
26 jointly ensure that an individual is not registered to vote under
27 this subsection until the individual has been released on parole or
28 discharged on completion of the individual's maximum sentence. For
29 any individual who is released from incarceration imposed as a



1 sentence for a crime and who is not otherwise subject to this
2 subsection, the department of corrections and the secretary of
3 state shall, as provided under subsection (2), jointly establish a
4 procedure and schedule for automatically and electronically
5 transmitting voter registration information from the department of
6 corrections to the secretary of state for those individuals who are
7 eligible to register or preregister to vote.

8 (7) The secretary of state shall develop procedures for
9 processing electronic records received from a state agency
10 designated as an automatic voter registration agency, or from an
11 Indian nation or tribe under this section, that do not include a
12 digitized image of the applicant's signature.

13 Sec. 495. The **voter** registration application must contain all
14 of the following:

15 (a) The name of the applicant.

16 (b) The residence address of the applicant, including the
17 street and number or rural route and box number and the apartment
18 number, if any.

19 (c) The city or township and county of residence of the
20 applicant.

21 (d) The date of birth of the applicant.

22 (e) The driver license or state personal identification card
23 number of the applicant, if available.

24 (f) A statement that the applicant is a citizen of the United
25 States.

26 (g) **A statement informing the applicant of all of the**
27 **following:**

28 (i) **State law requires that an applicant's United States**
29 **citizenship be verified in order for the applicant to vote in state**



1 and local elections.

2 (ii) The secretary of state shall verify the citizenship status
3 of the applicant.

4 (iii) The applicant may expedite the verification of citizenship
5 status by providing to the secretary of state satisfactory evidence
6 of United States citizenship.

7 (h) ~~(g)~~ For voter registration, a statement that the applicant
8 is at the time of completing the affidavit, or will be on the date
9 of the next election, not less than 18 years of age, and for
10 preregistration to vote, a statement that the applicant is at the
11 time of completing the affidavit at least 16 years of age.

12 (i) ~~(h)~~ For voter registration, a statement that the applicant
13 has or will have lived in this state not less than 30 days before
14 the next election, and for preregistration to vote, a statement
15 that the applicant has lived in this state for at least 30 days.

16 (j) ~~(i)~~ For voter registration, a statement that the applicant
17 has or will have established the applicant's residence in the
18 township or city in which the applicant is applying for
19 registration not less than 30 days before the next election, and
20 for preregistration to vote, a statement that the applicant has
21 established the applicant's residence in the township or city in
22 which the applicant is applying for preregistration for at least 30
23 days.

24 (k) ~~(j)~~ A statement that the applicant must be at least 18
25 years of age on or before the date of an election to vote in that
26 election.

27 (l) ~~(k)~~ A space in which the applicant must state the place of
28 the applicant's last registration, if any.

29 (m) ~~(l)~~ A statement that the registration is not effective



1 until processed by the clerk of the city or township in which the
2 applicant resides.

3 (n) ~~(m)~~—A statement that the applicant, if qualified, may vote
4 at an election occurring on or after the date of completing the
5 **voter registration** application.

6 (o) ~~(n)~~—A statement authorizing the cancellation of
7 registration at the applicant's last place of registration.

8 (p) ~~(o)~~—A space for the applicant to sign and certify to the
9 truth of the statements on the application.

10 **Sec. 496c. (1) After a voter registration applicant applies to**
11 **register to vote, the secretary of state shall verify the**
12 **applicant's citizenship status by using existing databases**
13 **maintained by the department of state and the United States**
14 **Department of Homeland Security and by using any other reliable**
15 **sources.**

16 (2) A voter registration applicant may provide satisfactory
17 evidence of United States citizenship to expedite the verification
18 of citizenship status by presenting 1 of the documents listed in
19 this section in person, or by including a photocopy of 1 of the
20 documents listed in this section with the applicant's mailed voter
21 registration application. Satisfactory evidence of United States
22 citizenship includes any of the following documents:

23 (a) The applicant's driver license or personal identification
24 card issued by the department of state or the equivalent department
25 of another state if that department indicates on the applicant's
26 driver license or personal identification card that the individual
27 has provided satisfactory evidence of United States citizenship.

28 (b) The applicant's birth certificate that verifies United
29 States citizenship. The applicant's birth certificate may be



1 accompanied by a marriage license or other documentation that shows
2 a name change.

3 (c) The pertinent pages of the applicant's United States
4 passport identifying the applicant and the applicant's passport
5 number.

6 (d) The applicant's United States naturalization documents or
7 number of the Certificate of Naturalization.

8 (e) The applicant's Certificate of Citizenship.

9 (f) An American Indian Card issued by the United States
10 Department of Homeland Security with the classification "KIC".

11 (g) The applicant's Bureau of Indian Affairs card number,
12 Indian Census Number, tribal treaty card number, or tribal
13 enrollment number.

14 (h) The applicant's Certification of Report of Birth or
15 Consular Report of Birth Abroad.

16 (3) If the secretary of state is unable to verify the
17 citizenship status of a voter registration applicant as provided in
18 this section, all of the following apply:

19 (a) The secretary of state shall notify the applicant that the
20 applicant's citizenship status could not be verified and the
21 applicant must be given an opportunity to provide satisfactory
22 evidence of United States citizenship to the secretary of state.

23 (b) The applicant is not a registered elector under this act
24 or under section 4 of article II of the state constitution of 1963
25 until the applicant's United States citizenship is verified.

26 (c) The applicant is designated as a federal-only voter in the
27 qualified voter file and is eligible to vote only in elections for
28 federal offices, and is not eligible to vote in state or local
29 elections until the applicant provides satisfactory evidence of



1 United States citizenship to the secretary of state.

2 (4) If the secretary of state receives satisfactory evidence
3 of United States citizenship from a voter registration applicant
4 described under subsection (3), the secretary of state shall
5 immediately register the applicant as a registered elector under
6 this act and remove the federal-only voter designation in the
7 qualified voter file, and that registered elector is eligible to
8 vote in all elections.

9 (5) If any provision of this section is held invalid, the
10 invalidity does not affect other provisions of this section that
11 can be given effect without the invalid provision, and to this end
12 the provisions of this section are severable.

13 Sec. 509o. (1) The secretary of state shall direct and
14 supervise the establishment and maintenance of a statewide
15 qualified voter file. The secretary of state shall establish the
16 technology to implement the qualified voter file. The qualified
17 voter file is the official file for the conduct of all elections
18 held in this state. The secretary of state may direct that all or
19 any part of the city or township voter registration files must be
20 used in conjunction with the qualified voter file at the first
21 state primary and election held after the creation of the qualified
22 voter file.

23 (2) Notwithstanding any other provision of law to the
24 contrary, an individual who appears to vote in an election and
25 whose name appears in the qualified voter file for that city,
26 township, or school district, and who is not designated in the
27 qualified voter file as preregistered to vote as provided under
28 section 496a **or who is not designated in the qualified voter file**
29 **as a federal-only voter as provided under section 509r,** is



1 considered a registered elector of that city, township, or school
2 district under this act.

3 (3) The secretary of state, a designated voter registration
4 agency, or a county, city, or township clerk shall not place a name
5 of an individual into the qualified voter file unless that
6 individual signs an application as prescribed in section 509r(3),
7 or is registered to vote or preregistered to vote under section
8 493a or 493b. The secretary of state or a designated voter
9 registration agency shall not allow an individual to indicate a
10 different address than the address in either the secretary of
11 state's or designated voter registration agency's files to be
12 placed in the qualified voter file.

13 (4) The secretary of state shall develop and utilize a process
14 by which information obtained through the United States Social
15 Security Administration's death master file that is used to cancel
16 an operator's or chauffeur's license issued under the Michigan
17 vehicle code, 1949 PA 300, MCL 257.1 to 257.923, or an official
18 state personal identification card issued under 1972 PA 222, MCL
19 28.291 to 28.300, of a deceased resident of this state is also used
20 at least once a month to update the qualified voter file to cancel
21 the voter registration of any elector determined to be deceased.
22 The secretary of state shall make the canceled voter registration
23 information under this subsection available to the clerk of each
24 county, city, or township to assist with the clerk's obligations
25 under section 510.

26 (5) Subject to this subsection, the secretary of state shall
27 participate with other states in 1 or more recognized multistate
28 programs or services, if available, to assist in the verification
29 of the current residence and voter registration status of electors.



1 The secretary of state shall not participate in any recognized
2 multistate program or service described in this subsection that
3 requires this state to promote or adopt legislation as a condition
4 of participation in that program or service. In addition, the
5 secretary of state shall not participate in any recognized
6 multistate program or service described in this subsection if the
7 secretary of state determines that data of that program or service
8 are not being adequately secured or protected. The secretary of
9 state shall follow the procedures under section 509aa(5) with
10 regard to any electors affected by information obtained through any
11 multistate program or service.

12 Sec. 509q. (1) Subject to subsection (2), the qualified voter
13 file must contain all of the following information for each
14 qualified voter:

15 (a) The name; residence address including house number and
16 street name or rural route and box number, and the apartment
17 number, if any; city; state; zip code; and date of birth.

18 (b) The driver license number or state personal identification
19 card number or similar number issued by a designated voter
20 registration agency.

21 (c) Jurisdictional information including county and city or
22 township; village, if any; metropolitan district, if any; and
23 school district.

24 (d) Precinct numbers and ward numbers, if any.

25 (e) Any other information that the secretary of state
26 determines is necessary to assess the eligibility of qualified
27 electors or to administer voter registration or other aspects of
28 the election process.

29 (f) Voting history for a 5-year period.



1 (g) Before June 30, 2025, the most recent digitized signature
2 of an elector if captured or reproduced by the secretary of state
3 or a county, city, or township clerk from a voter registration
4 application under section 509hh, or captured or reproduced by the
5 secretary of state under section 307 of the Michigan vehicle code,
6 1949 PA 300, MCL 257.307. Beginning June 30, 2025, and subject to
7 section 493b(7), the digitized signatures of an elector if captured
8 or reproduced by the secretary of state or a county, city, or
9 township clerk from a voter registration application under section
10 509hh, or captured or reproduced by the secretary of state under
11 section 307 of the Michigan vehicle code, 1949 PA 300, MCL 257.307.

12 **(h) For a federal-only voter, a notation that the individual**
13 **is not authorized to vote in any election other than an election**
14 **for federal offices.**

15 (2) If a qualified voter is a program participant, as that
16 term is defined in section 3 of the address confidentiality program
17 act, 2020 PA 301, MCL 780.853, the qualified voter file must also
18 contain the program participant's unique identification number
19 issued by the department of the attorney general.

20 (3) Except as otherwise provided in this subsection, if a
21 qualified voter is a program participant, as that term is defined
22 in section 3 of the address confidentiality program act, 2020 PA
23 301, MCL 780.853, the information contained in the qualified voter
24 file for that program participant, including the program
25 participant's unique identification number issued by the department
26 of the attorney general, is confidential and not subject to
27 disclosure under the freedom of information act, 1976 PA 442, MCL
28 15.231 to 15.246. The information contained in the qualified voter
29 file for a program participant, as that term is defined in section



1 3 of the address confidentiality program act, 2020 PA 301, MCL
2 780.853, may be used by an election official during the normal
3 course of the election official's duties as an election official.

4 (4) Subject to section 509gg, if an individual preregisters to
5 vote under section 496a, the information contained in the qualified
6 voter file for that individual is confidential and not subject to
7 disclosure under the freedom of information act, 1976 PA 442, MCL
8 15.231 to 15.246, until that individual is 17-1/2 years of age.

9 Sec. 509r. (1) The secretary of state shall establish and
10 maintain the computer system and programs necessary to the
11 operation of the qualified voter file. The secretary of state shall
12 allow each county, city, or township access to the qualified voter
13 file. The county, city, and township clerks shall verify the
14 accuracy of the names and addresses of registered electors in the
15 qualified voter file.

16 (2) Subject to subsection (3), the secretary of state and
17 county, city, and township clerks shall compile the qualified voter
18 file that consists of all qualified electors from the following
19 sources and in the following priority:

20 (a) A driver license or, if there is no driver license, a
21 state personal identification card, including renewals and changes
22 of address with the department of state.

23 (b) An application for benefits or services, including
24 renewals and changes of address, taken by a designated voter
25 registration agency.

26 (c) An application to register to vote taken by a county,
27 city, or township clerk.

28 (3) ~~An~~ **Subject to subsection (4),** an individual whose name
29 does not otherwise appear in the qualified voter file, or whose



1 name has not been added to the qualified voter file under section
 2 493a or 493b, must be placed in the qualified voter file only if
 3 the individual signs under penalty of perjury an application that
 4 contains an attestation that the applicant meets all of the
 5 following requirements:

6 (a) Is 16 years of age or older.

7 (b) Is a citizen of the United States and this state.

8 (c) Is a resident of the city or township where the
 9 individual's street address is located.

10 **(4) If the secretary of state is unable to verify the**
 11 **citizenship status of a voter registration applicant as provided**
 12 **under section 496c, the secretary of state must still place the**
 13 **name of that voter registration applicant in the qualified voter**
 14 **file, but must designate that voter registration applicant as a**
 15 **federal-only voter.**

16 **(5) ~~(4)~~**—The secretary of state shall create an inactive voter
 17 file.

18 **(6) ~~(5)~~**—If an elector is sent a notice under section 509aa to
 19 confirm the elector's residence information or if an elector does
 20 not vote for 6 consecutive years, the secretary of state shall
 21 place the registration record of that elector in the inactive voter
 22 file. The registration record of that elector must remain in the
 23 inactive voter file until 1 of the following occurs:

24 (a) The elector votes at an election.

25 (b) The elector responds to a notice sent under section 509aa.

26 (c) Another voter registration transaction involving that
 27 elector occurs.

28 **(7) ~~(6)~~**—While the registration record of an elector is in the
 29 inactive voter file, the elector remains eligible to vote and the



1 elector's name must appear on the precinct voter registration list.

2 **(8)** ~~(7)~~—If the registration record of an elector is in the
3 inactive voter file because the elector was sent a notice under
4 section 509aa to confirm the elector's residence information and
5 that elector votes at an election by absent voter ballot, that
6 absent voter ballot must be marked in the same manner as a
7 challenged ballot as provided in section 727.

8 Sec. 509gg. (1) Subject to subsection (3), the information
9 described in this subsection that is contained in a registration
10 record is exempt from disclosure under the freedom of information
11 act, 1976 PA 442, MCL 15.231 to 15.246. The secretary of state, a
12 designated voter registration agency, or a county, city, township,
13 or village clerk shall not release a copy of that portion of a
14 registration record that contains any of the following:

15 (a) The record that an individual declined to register to
16 vote.

17 (b) The office that received a registered elector's
18 application.

19 (c) A registered elector's driver license or state personal
20 identification card number.

21 (d) The month and day of birth of a registered elector.

22 (e) The telephone number provided by a registered elector.

23 (f) The digitized signature of an elector that is captured or
24 reproduced and transmitted to the qualified voter file by the
25 secretary of state or a county, city, or township clerk under
26 section 509hh or by the secretary of state under section 307 of the
27 Michigan vehicle code, 1949 PA 300, MCL 257.307.

28 **(g) Any satisfactory evidence of United States citizenship**
29 **provided by the registered elector under section 496c.**



1 **(h) The citizenship status of the registered elector.**

2 (2) Except as otherwise provided in this subsection, the last
3 4 digits of a registered elector's Social Security number contained
4 in a registration record are exempt from disclosure under the
5 freedom of information act, 1976 PA 442, MCL 15.231 to 15.246. The
6 last 4 digits of a registered elector's Social Security number
7 contained in a registration record may only be used by the
8 secretary of state to verify a registered elector's data as
9 provided by the help America vote act of 2002 and to verify a
10 registered elector's status under this act, and must not be used or
11 released for any other purpose.

12 (3) If an individual preregisters to vote under section 496a,
13 the information contained in the registration record for that
14 individual is confidential and not subject to disclosure under the
15 freedom of information act, 1976 PA 442, MCL 15.231 to 15.246,
16 until that individual is 17-1/2 years of age. Once that individual
17 is 17-1/2 years of age, the information contained in the
18 registration record for that individual is subject to the
19 exemptions provided in subsection (1).

20 Sec. 509ii. (1) The secretary of state shall develop and
21 maintain an electronic voter registration interface to allow an
22 applicant to submit a voter registration application electronically
23 through the secretary of state's website. The electronic voter
24 registration interface must do all of the following:

25 (a) Transmit the application to the qualified voter file.

26 (b) Require the applicant's assent to submit the voter
27 registration application electronically.

28 (c) Issue a receipt to the applicant in the manner prescribed
29 by the secretary of state.



1 (d) Utilize security features determined appropriate by the
2 secretary of state or the department of technology, management, and
3 budget to prevent unauthorized access to data or information and to
4 ensure that a person attempting to use the electronic voter
5 registration interface is an individual.

6 (e) Provide an option that allows an applicant to upload
7 satisfactory evidence of United States citizenship for the
8 citizenship verification by the secretary of state as provided
9 under section 496c. The option must clearly indicate to the
10 applicant that uploading satisfactory evidence of United States
11 citizenship on the electronic voter registration interface is not a
12 condition for registering to vote.

13 (2) The secretary of state shall develop an electronic voter
14 registration application that includes all of the same information
15 as provided on the mail registration form developed by the
16 secretary of state under section 509n(a), and that also includes
17 the notice required under section 307(1)(c) of the Michigan vehicle
18 code, 1949 PA 300, MCL 257.307.

19 (3) In order to authenticate the identity of a voter
20 registration applicant submitting an electronic voter registration
21 application under this section, the voter registration applicant
22 must provide 1 of the following:

23 (a) The identification number for the applicant on any of the
24 following:

25 (i) A valid operator's or chauffeur's license issued under the
26 Michigan vehicle code, 1949 PA 300, MCL 257.1 to 257.923.

27 (ii) A valid official state personal identification card issued
28 under 1972 PA 222, MCL 28.291 to 28.300.

29 (iii) An enhanced driver license issued under the enhanced



1 driver license and enhanced official state personal identification
2 card act, 2008 PA 23, MCL 28.301 to 28.308.

3 (iv) An enhanced official state personal identification card
4 issued under the enhanced driver license and enhanced official
5 state personal identification card act, 2008 PA 23, MCL 28.301 to
6 28.308.

7 (b) If the applicant does not have an identification number
8 for an identification as provided under subdivision (a), the last 4
9 digits of a valid Social Security number for the applicant.

10 (4) If a voter registration applicant submits a voter
11 registration application under this section that provides an
12 identification number for an identification as provided under
13 subsection (3) (a), the electronic voter registration interface must
14 do all of the following:

15 (a) Interact with the state operator's or chauffeur's license
16 file, enhanced driver license file, official state personal
17 identification card file, and enhanced state personal
18 identification card file for authentication purposes.

19 (b) Authenticate the identity of an applicant under a process
20 developed by the secretary of state that verifies all of the
21 following:

22 (i) The applicant's operator's or chauffeur's license number,
23 enhanced driver license number, official state personal
24 identification card number, or enhanced official state personal
25 identification card number.

26 (ii) The applicant's full name as printed on the applicant's
27 operator's or chauffeur's license, enhanced driver license,
28 official state personal identification card, or enhanced official
29 state personal identification card.



1 (iii) The applicant's date of birth.

2 (iv) The applicant's eye color as printed on the applicant's
3 operator's or chauffeur's license, enhanced driver license,
4 official state personal identification card, or enhanced official
5 state personal identification card.

6 (c) Require the applicant's assent to use the applicant's most
7 recent digitized signature if captured or reproduced by the
8 secretary of state under section 307 of the Michigan vehicle code,
9 1949 PA 300, MCL 257.307, section 5 of the enhanced driver license
10 and enhanced official state personal identification card act, 2008
11 PA 23, MCL 28.305, or 1972 PA 222, MCL 28.291 to 28.300.

12 (5) If a voter registration applicant does not have an
13 identification number for an identification as provided under
14 subsection (3)(a), and that voter registration applicant submits a
15 voter registration application under this section that provides the
16 last 4 digits of the applicant's Social Security number, the
17 electronic voter registration interface must do all of the
18 following:

19 (a) Authenticate the identity of the applicant under a process
20 developed by the secretary of state that verifies all of the
21 following information using information maintained by the United
22 States Social Security Administration or the secretary of state:

23 (i) The last 4 digits of the applicant's Social Security
24 number.

25 (ii) The applicant's full name.

26 (iii) The applicant's date of birth.

27 (b) Except as otherwise provided under subsection (6), require
28 the applicant's assent to use the applicant's most recent digitized
29 signature contained in the qualified voter file.



1 (6) If a digitized signature for a voter registration
2 applicant under subsection (5) is not contained in the qualified
3 voter file, the voter registration applicant is required to
4 electronically submit an image of the applicant's signature through
5 the electronic voter registration interface and must assent to the
6 use of this signature image as the applicant's signature for voter
7 registration purposes. The secretary of state shall develop a
8 process for a voter registration applicant under subsection (5) to
9 electronically submit a high-quality digitized image of the
10 applicant's signature through the electronic voter registration
11 interface, as well as a process for transmitting the digitized
12 image of that applicant's signature to the qualified voter file.

13 (7) If an elector utilizes the electronic voter registration
14 interface to indicate a change of address, the state bureau of
15 elections shall send a notice confirming the change to the
16 elector's previous address.

17 (8) A registered elector who wishes to provide a new or
18 additional signature for the registered elector's registration
19 record may utilize the electronic voter registration interface to
20 electronically submit an image of the registered elector's
21 signature and assent to the use of that signature image as the
22 registered elector's signature for voter registration purposes. The
23 registered elector must have the registered elector's identity
24 authenticated under the procedures in subsection (4) (b) or (5) (a)
25 before the image of the registered elector's signature is accepted
26 for inclusion in the qualified voter file. The registered elector
27 shall submit the image of the registered elector's signature using
28 the process developed by the secretary of state under subsection
29 (6) .